BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, California 95204
Email: bnn.cdl@gmail.com
Plaintiff, Pro Se

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EASTERN DISTRICT OF CALIFORNIA
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA - SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI,	)	Case No. 2:26-CV-983 DC CSK (PS)
Plaintiff,	)	**COMPLAINT FOR DAMAGES UNDER 42 U.S.C. § 1983**
v.	)	
DIANA CANDELARIA, in her individual capacity,	)	(Fourteenth Amendment — Procedural Due Process; Structural Bias; Violation of Clearly Established Law)
Defendant.	)	**JURY TRIAL DEMANDED**

INTRODUCTION

1. This is a civil rights action for damages under 42 U.S.C. § 1983 against Defendant Diana Candelaria ("Defendant" or "Candelaria"), a Driver Safety Hearing Officer employed by the California Department of Motor Vehicles ("DMV"), sued in her individual capacity. Defendant deprived Plaintiff Brendan Ngehsi Newanforbi ("Plaintiff") of a constitutionally

protected property interest—his Class A Commercial Driver's License and his livelihood as a professional truck driver—without adequate procedural due process, in violation of the Fourteenth Amendment to the United States Constitution, while acting under color of state law.

2. The administrative record in this case establishes a sequence of events that strips the controversy of any ambiguity and reduces it to a single, inescapable conclusion: the State of California, acting through Defendant, destroyed a man's livelihood based on an arrest that the arresting agency itself formally repudiated, through a hearing that ignored binding precedent and objective evidence, and before a decisionmaker who functioned as a prosecutor rather than a judge.

3. The undisputed chronology is as follows:

• On November 1, 2024, Plaintiff was lawfully parked on an unpaved dirt shoulder, asleep in a stationary vehicle. He had made the responsible decision to rest rather than drive while fatigued—exactly what his commercial driver training instructed.

• California Highway Patrol officers approached under the guise of a "welfare check," but within fourteen seconds of arrival—before conducting any welfare assessment—one officer declared "I think it's booze," revealing an immediate criminal investigative motive. The officers then conducted a warrantless entry and search of Plaintiff's vehicle while he remained asleep, and arrested him for DUI despite never observing him drive.

• On November 5, 2024—eleven weeks before the DMV hearing—the arresting agency itself issued a formal Detention Certificate under California Penal Code § 849(b)(1), certifying that there were "insufficient grounds" for prosecution and that, by operation of state law, the encounter "shall not be deemed an arrest, but a detention only."

• No criminal charges were ever filed.

• On January 24, 2025, Defendant Candelaria presided over Plaintiff's Administrative Per Se ("APS") hearing. Plaintiff presented the Detention Certificate, the dashcam video transcript, and binding California Supreme Court precedent (Mercer v. DMV) establishing that the warrantless arrest was unlawful.

• On February 11, 2025, Defendant issued a written decision that: (a) dismissed Plaintiff's arguments as "unpersuasive" without reasoned analysis; (b) failed entirely to address the Detention Certificate—the single most dispositive piece of evidence in the proceeding; (c) applied an irrebuttable presumption of official regularity to override objective contrary evidence; and (d) sustained a one-year suspension of Plaintiff's CDL, destroying his employment and his capacity to earn a living.

4. The APS implied consent framework under California Vehicle Code §§ 13353 and 13353.2 requires as a jurisdictional predicate that the driver was "lawfully arrested." When the arresting agency itself has formally certified that the arrest lacked sufficient grounds and is legally reclassified as a detention only, the "lawful arrest" predicate ceases to exist as a matter of law. Defendant Candelaria proceeded anyway—exercising adjudicative power over a subject matter that, by the State's own formal admission, did not exist.

5. Compounding this jurisdictional nullity, Defendant operated within a structurally biased framework that has been squarely condemned by the California Court of Appeal in California DUI Lawyers Ass'n v. DMV (2022) 77 Cal.App.5th 517 and Knudsen v. DMV (2024) 101 Cal.App.5th 186—serving simultaneously as the prosecuting advocate for the DMV and the ostensible adjudicator of fact. Her decision reflects not neutral judgment but advocacy for a predetermined outcome.

6. This action seeks to vindicate a principle foundational to ordered liberty: before the State may deprive a person of their livelihood, it must provide a meaningful hearing before a fair and impartial decisionmaker. Defendant provided neither. What the State provided was a simulacrum of due process—a hearing in form only, designed to ratify a foregone conclusion rather than to determine the truth.

JURISDICTION AND VENUE

7. This Court has original subject-matter jurisdiction pursuant to 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) and (4) (civil rights), as this action arises under the Constitution and laws of the United States, including 42 U.S.C. § 1983.

8. Venue is proper in this District pursuant to 28 U.S.C. § 1391(b)(1) and (b)(2) because Defendant resides in and conducts official business within the Eastern District of California, and a substantial part of the events giving rise to the claims occurred in this District, including Plaintiff's residence in Stockton, San Joaquin County, and the DMV's administration and enforcement of the APS suspension through its Sacramento Driver Safety offices.

9. Plaintiff is entitled to a trial by jury on all claims for damages pursuant to the Seventh Amendment to the United States Constitution.

PARTIES

10. Plaintiff BRENDAN NGEHSI NEWANFORBI is an individual residing at 1455 Cat Tail Drive, Stockton, California 95204. At all times relevant hereto, Plaintiff held a valid California Class A Commercial Driver's License, License No. F7953179, with doubles/triples and tank vehicle endorsements. Plaintiff was employed as a professional commercial truck driver

by Centerline Drivers, LLC, assigned to the Lily Transportation—Toyota Dedicated route in San Ramon, California, earning a regular hourly rate of $33.35 and premium rate of $50.03, with a start date of October 30, 2024—just two days before the encounter that gave rise to this action.

11. Defendant DIANA CANDELARIA is, and at all relevant times was, employed by the California Department of Motor Vehicles as a Driver Safety Hearing Officer within the Legal Affairs Division, Driver Safety Branch. Candelaria presided over Plaintiff's APS hearing held remotely via Microsoft Teams on January 24, 2025, and issued a written Notification of Findings and Decision dated February 11, 2025, in APS Case No. 34739340.

12. At all times relevant hereto, Defendant acted under color of the statutes, regulations, customs, and usages of the State of California, and within the course and scope of her employment with the DMV, clothed with the authority of state law.

13. Defendant is sued exclusively in her individual capacity for compensatory and punitive damages.

STATEMENT OF FACTS

A. Plaintiff's Protected Property Interest

14. At all relevant times, Plaintiff held a valid California Class A CDL, which constituted a protected property interest under the Due Process Clause of the Fourteenth Amendment. Bell v. Burson, 402 U.S. 535, 539 (1971) ("[L]icenses are not to be taken away without that procedural due process required by the Fourteenth Amendment."); Mackey v. Montrym, 443 U.S. 1, 10–11 (1979).

15. Plaintiff's CDL was not merely a personal convenience; it was the indispensable

credential enabling him to earn his livelihood. The CDL, with specialized doubles/triples and tank endorsements, represented years of professional training and certification. Its suspension immediately destroyed Plaintiff's employment and extinguished his capacity to seek comparable work anywhere in the commercial trucking industry. For Plaintiff, the CDL was not a privilege—it was his economic lifeline.

B. The November 1, 2024 CHP Encounter: The Objective Record Contradicts the Official Narrative

16. In the early morning hours of November 1, 2024, Plaintiff was lawfully parked on the unpaved dirt shoulder of eastbound Interstate 580, west of Isabel Avenue, Livermore, Alameda County, California. Plaintiff was asleep in the driver's seat of a 2023 Tesla Model Y. The vehicle was stationary with the engine off. Plaintiff had pulled over because he was fatigued and, consistent with his training as a commercial driver, made the responsible decision to rest rather than continue driving.

17. At approximately 12:55 a.m., CHP Officer Santiago Meza-Gonzalez (Badge No. 023295) and Officer Jose Melano (Badge No. 023054) approached under the stated purpose of a "welfare check."

18. The CHP dashcam video and audio recording—an objective, timestamped, and irrefutable evidentiary record—establishes the following chronology of events material to this action:

- 00:56:05: Both officers peer into Plaintiff's vehicle windows with flashlights while Plaintiff remains asleep. (Constitutional Significance: Initial "welfare check" begins with investigative conduct, not caretaking.)

• 00:56:09: Officer Melano states: "I think it's booze." (Constitutional Significance: Uttered fourteen seconds after approach, before any welfare assessment—reveals immediate criminal investigative motive.)

• 00:56:43: Officer Melano opens the front passenger-side door of Plaintiff's vehicle. (Constitutional Significance: Warrantless entry without consent, without exigent circumstances, while Plaintiff is asleep.)

• 00:58:49: Officer Melano reaches into vehicle, seizes a cup, handles it, smells its contents. (Constitutional Significance: Warrantless search and seizure; Melano identifies contents as urine.)

• 00:59:46: Officer Melano opens rear passenger door and conducts physical search of vehicle interior. (Constitutional Significance: Warrantless search of passenger compartment.)

• 01:00:09: Melano discovers empty "Mike's Hard Lemonade" container and labels it "source alcohol." (Constitutional Significance: Discovery is the direct product of a warrantless search.)

• 01:11:42: CHP Dispatch informs officers of Plaintiff's active parole status. (Constitutional Significance: Eleven minutes and fifty-six seconds AFTER the warrantless search commenced—parole status cannot retroactively justify the preceding search.)

• 01:12:00: Plaintiff formally arrested for misdemeanor DUI under CVC § 23152(a) per CVC § 40300.5. (Constitutional Significance: Arrest occurs after unlawful search and after parole status discovered.)

19. The dashcam audio captures a critical exchange that fundamentally impeaches the arresting officer's sworn statements. Officer Melano, after seizing and inspecting the cup found in the vehicle, explicitly states: "Is it water? No this is piss. This is pee... I'm telling you it's piss. It smells like piss." Officer Meza-Gonzalez expressly refused to smell the cup, and Melano instructed him to leave it there.

20. Despite this contemporaneous identification, Officer Meza-Gonzalez's sworn DS-367 statement and Arrest Investigation Report cite a "strong distinct odor of an alcoholic beverage emitting from within the vehicle" and from Plaintiff's person as primary probable cause. The dashcam transcript establishes that the only liquid discovered, handled, and identified by the officers on scene was definitively characterized by them as urine—not alcohol. This is not a matter of competing inferences; it is an objective, audio-recorded contradiction between what the officers said on scene and what they subsequently swore under oath.

21. The dashcam transcript is critical because it provides an objective record that directly contradicts the officer's narrative on every material point: (a) the pretextual nature of the encounter; (b) the warrantless entry and search conducted without consent or exigent circumstances; (c) the timing of the parole status discovery (which occurred after the search, eliminating any post hoc justification under the parole search doctrine); and (d) the officers' contemporaneous identification of the cup's contents as urine rather than alcohol.

C. The Arrest Was Statutorily Unauthorized Under Mercer v. DMV

22. Under California Penal Code § 836(a)(1), a warrantless misdemeanor arrest requires that the offense was committed in the officer's presence. Because DUI under CVC § 23152 is a driving offense, the act of driving must be directly observed. No officer observed Plaintiff driving. Plaintiff was asleep in a stationary vehicle upon the officers' arrival.

23. Officer Meza-Gonzalez cited CVC § 40300.5 as the statutory authority to arrest without observing driving. Section 40300.5 provides narrow exceptions for warrantless DUI arrests, including when the vehicle is "obstructing a roadway."

24. No exception applied:

- No traffic accident occurred.
- Plaintiff posed no flight risk—he was asleep.
- There was no imminent evidence destruction.
- Plaintiff's vehicle was parked entirely on the unpaved dirt shoulder, not on a "roadway." CVC § 530 defines "roadway" as the portion of a highway "improved, designed, or ordinarily used for vehicular travel," explicitly excluding unpaved shoulders.

25. The California Supreme Court adjudicated this precise scenario in Mercer v. Department of Motor Vehicles, 53 Cal.3d 753, 760–62 (1991), holding that a warrantless DUI arrest under CVC § 40300.5 is unlawful when the vehicle was not observed in "volitional movement" and was parked off the traveled portion of the roadway. The Court explicitly rejected the "obstructing a roadway" exception for a safely parked vehicle. Mercer has been the law of California for over three decades.

26. The officer's own arrest report repeatedly describes the vehicle's location as the "dirt shoulder" and "right shoulder." Under Mercer, the arrest was without statutory authority and unlawful from its inception.

27. The warrantless search of Plaintiff's vehicle independently violated the Fourth

Amendment under People v. Sanders, 31 Cal.4th 318 (2003), which holds that a search cannot be justified post hoc by a parole condition discovered only after the search was already underway. Here, the officers conducted a full warrantless search of the vehicle's interior before Dispatch informed them of Plaintiff's parole status at 01:11:42—nearly twelve minutes after the search began.

D. The CHP Detention Certificate: Formal Statutory Nullification of the "Arrest"

28. On November 5, 2024—eleven weeks before Plaintiff's DMV hearing—the Dublin CHP issued a formal Detention Certificate (CHP Form "DUBLIN CHP — 01991 — DETENTION CERTIFICATE"), referencing CHP Case No. RJ68845. A true and correct copy is attached hereto as Exhibit A.

29. The Detention Certificate expressly states that Plaintiff's taking into custody on November 1, 2024, "was a detention only, not an arrest," and that Plaintiff was released pursuant to California Penal Code § 849(b)(1), which authorizes release when the officer is "satisfied that there are insufficient grounds for making a criminal complaint against the person arrested."

30. The statutory consequences are absolute and mandatory:

- Penal Code § 849(c): "The record of arrest of a person released pursuant to paragraphs (1) and (3) of subdivision (b) shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only." (Emphasis added.)

- Penal Code § 849.5: "In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, any record of arrest of the person shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only." (Emphasis added.)

• Penal Code § 851.6(a): Mandates issuance of a certificate "describing the action as a detention" to any person released under § 849(b)(1) or (3).

31. No criminal charges were ever filed against Plaintiff arising from the November 1, 2024 incident. No accusatory pleading of any kind was ever lodged.

32. This Detention Certificate is not merely an administrative receipt or a bureaucratic formality. It is a legally binding, institutional admission by the arresting law enforcement agency that the evidentiary threshold for a lawful arrest—probable cause—did not exist. By operation of statutory law, the event was reclassified ab initio as a mere detention. The Legislature's use of the mandatory "shall not be deemed an arrest" language leaves no room for discretion, interpretation, or evasion.

33. The APS implied consent framework under CVC §§ 13353 and 13353.2 requires as a jurisdictional predicate that the driver was "lawfully arrested." When the arresting agency itself has formally certified that the arrest lacked sufficient grounds and is legally reclassified as a detention only, the "lawful arrest" predicate ceases to exist. The DMV's jurisdiction to act evaporated before the hearing ever commenced.

E. Defendant Candelaria's Constitutionally Deficient Adjudication

34. On January 24, 2025, Defendant Candelaria presided over Plaintiff's APS hearing via remote Microsoft Teams conference.

35. At the hearing, Plaintiff presented:

• The dashcam video transcript establishing the officers' pretextual approach,

warrantless entry, search timeline, and the officers' identification of the cup's contents as urine (Exhibit B);

• The formal Detention Certificate issued under Penal Code § 849(b)(1), with the accompanying statutory text making clear its legal effect (Exhibit A);

• The applicable California Supreme Court precedent, including Mercer v. DMV and People v. Sanders;

• A detailed legal analysis (submitted in writing) demonstrating that the arrest was unlawful and the "lawful arrest" jurisdictional predicate was destroyed.

36. In her Notification of Findings and Decision dated February 11, 2025 (attached hereto as Exhibit C), Defendant:

37. (a) Dismissed Plaintiff's constitutional and statutory arguments as "unpersuasive" without any reasoned analysis and without explaining why binding California Supreme Court precedent was inapplicable to the undisputed facts of record;

38. (b) Failed entirely to address the legal effect of the Penal Code § 849(b)(1) Detention Certificate—the single most dispositive piece of evidence in the proceeding. The decision contains zero mention of the Certificate, its statutory basis, or its legal consequences for the "lawful arrest" predicate. This silence is not an oversight; it is an abdication;

39. (c) Relied exclusively on the presumption that "official duty has been regularly performed" to adopt Officer Meza-Gonzalez's DS-367 sworn statement as conclusive truth, while wholly disregarding the dashcam video evidence that directly contradicted the officer's account on material points—including the officers' on-scene identification of the cup's contents as urine

rather than alcohol. A hearing that treats the State's evidence as irrebuttable is not a hearing at all—it is a ratification;

40. (d) Endorsed the officers' escalation by ruling that the officer "would have been negligent in his job duties if he did not conduct an investigation"—a conclusory statement that functioned as blanket approval of every investigatory step, lawful or not, without any analysis of whether the specific actions taken were constitutionally permissible;

41. (e) Mischaracterized the record by stating that "no evidence was presented to the contrary" of the DS-367, when in fact Plaintiff had presented the dashcam transcript, the Detention Certificate, and binding legal authority—all squarely contradictory to the officer's narrative. This mischaracterization is not merely inaccurate; it is irreconcilable with the administrative record; and

42. (f) Sustained the one-year suspension of Plaintiff's driving privileges, disqualifying his CDL from February 20, 2025 through February 19, 2026, and imposed a $125.00 reissue fee and three-year SR-22 insurance requirement.

43. These procedural failures are not merely errors of judgment or debatable exercises of discretion. They reflect a systematic refusal to conduct the type of fair, impartial, evidence-based inquiry that the Fourteenth Amendment demands. Plaintiff was afforded a hearing in form only—not a hearing that satisfied the minimum requirements of procedural due process. See Goldberg v. Kelly, 397 U.S. 254, 267–68 (1970) (due process requires a meaningful opportunity to be heard, not merely the formality of a hearing).

F. The Dual-Role Framework: Structural Bias as a Matter of Law

44. Defendant operated within a structurally biased framework that has been squarely

condemned by the California Court of Appeal in California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022), and Knudsen v. DMV, 101 Cal.App.5th 186 (2024).

45. The DMV's own hearing notice confirms that "The Hearing Officer will develop the facts and render a final decision." This dual role requires the hearing officer to serve simultaneously as:

- The prosecuting advocate for the DMV—tasked with "developing the facts" and marshaling evidence in favor of the suspension; and

- The ostensibly impartial adjudicator of fact.

46. In California DUI Lawyers Ass'n, the court held that "combining the roles of advocate and adjudicator in a single person employed by the DMV violates due process under the Fourteenth Amendment." 77 Cal.App.5th at 530. In Knudsen, the court held that when a hearing officer actually acts as an advocate, it constitutes "structural error"—meaning Plaintiff need not prove actual prejudice. 101 Cal.App.5th at 198.

47. Defendant Candelaria's conduct exemplifies the precise species of advocacy condemned in these decisions. She:

- Adopted the arresting officer's narrative without independent scrutiny, despite objective evidence of material contradictions;

- Ignored exculpatory evidence—the dashcam transcript and Detention Certificate—that undermined the State's case;

- Applied an irrebuttable presumption of regularity to insulate the DS-367 from

any challenge;

• Issued a conclusory decision that functioned as a rubber stamp for the officers' conduct rather than a neutral adjudication of the evidence. Her finding that the officer "would have been negligent" if he had not investigated is the language of an advocate defending the State, not a neutral decisionmaker weighing evidence.

G. Damages

48. As a direct and proximate result of Defendant's unconstitutional conduct, Plaintiff has suffered and continues to suffer the following injuries:

49. (a) Total Loss of Employment and Livelihood. Plaintiff's CDL suspension immediately terminated his employment with Centerline Drivers, LLC, and has rendered him unable to obtain employment in commercial trucking—the field for which he is exclusively trained and credentialed—for the duration of the one-year suspension period. Plaintiff began his employment just two days before the November 1, 2024 encounter, and the suspension destroyed a career opportunity that he had worked for years to secure.

50. (b) Lost Wages. Plaintiff has lost and continues to lose wages at his documented rate of $33.35/hour regular time and $50.03/hour premium time. Based on a standard full-time schedule, Plaintiff's annual lost wages exceed $69,000 in base compensation alone, exclusive of overtime and premium pay.

51. (c) Consequential Economic Damages. Including but not limited to: the $125.00 DMV reissue fee; the cost of obtaining and maintaining SR-22 high-risk insurance for three years; potential CDL reinstatement and re-testing costs; loss of seniority, career advancement, and professional reputation in the commercial trucking industry; and increased insurance premiums.

Plaintiff pleads the following total economic damages in this action:

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Lost wages:        $114,894
Benefits loss:     $28,723
Career impact:     $75,000
Out-of-pocket:     $7,500
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Total:             $226,117
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52. (d) Emotional Distress. Plaintiff has suffered severe emotional distress, anxiety, humiliation, and mental anguish resulting from the arbitrary deprivation of his constitutionally protected property interest and the destruction of his livelihood. The distress is compounded by the knowledge that the very agency that arrested him formally acknowledged the arrest was unjustified—yet the DMV suspended his license anyway.

53. (e) Ongoing Constitutional Deprivation. Plaintiff continues to suffer an ongoing deprivation of his Fourteenth Amendment property interest in his CDL and his ability to earn a living. Each day of the suspension constitutes a continuing violation of Plaintiff's constitutional rights.

CLAIM FOR RELIEF

COUNT I

42 U.S.C. § 1983 — Fourteenth Amendment — Procedural Due Process

(Against Defendant Candelaria in Her Individual Capacity)

54. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as though fully set forth herein.

A. Violation of Clearly Established Constitutional Rights

55. At all relevant times, Plaintiff possessed a constitutionally protected property interest in his California Class A Commercial Driver's License under the Due Process Clause of the Fourteenth Amendment. Bell v. Burson, 402 U.S. 535, 539 (1971); Mackey v. Montrym, 443 U.S. 1, 10–11 (1979).

56. Defendant Candelaria, acting under color of state law in her capacity as a DMV Driver Safety Hearing Officer, deprived Plaintiff of this protected property interest by sustaining a one-year suspension and CDL disqualification without constitutionally adequate procedural due process.

57. Procedural due process requires, at a minimum, that an individual receive a meaningful opportunity to be heard before a fair and impartial decisionmaker. Mathews v. Eldridge, 424 U.S. 319, 333 (1976); Goldberg v. Kelly, 397 U.S. 254, 267–68 (1970). The hearing provided by Defendant failed to satisfy these minimum constitutional requirements in multiple, independently sufficient respects.

58. Specifically, Defendant violated Plaintiff's procedural due process rights by:

59. (a) Operating within a structurally biased framework in which she served simultaneously as the prosecuting advocate and the adjudicator of fact. This dual role—squarely condemned in California DUI Lawyers Ass'n and Knudsen—created an unconstitutionally high risk of actual bias. See Withrow v. Larkin, 421 U.S. 35, 47 (1975). The record confirms that Defendant actually acted as an advocate, not a neutral adjudicator, making this a case of structural error under Knudsen;

60. (b) Applying an irrebuttable presumption of official regularity to override Plaintiff's

objective evidence of constitutional violations—specifically, adopting the officer's DS-367 statement as conclusive truth while refusing to weigh it against the dashcam video evidence that contradicted the officer's account on material points. A hearing that treats the State's evidence as irrebuttable is constitutionally indistinguishable from no hearing at all;

61. (c) Refusing to consider or address binding legal authority presented by Plaintiff, including Mercer v. DMV, 53 Cal.3d 753 (1991), which directly governed whether the warrantless arrest had statutory authority under the undisputed facts. A hearing officer who ignores controlling precedent denies the litigant the "meaningful opportunity to be heard" that the Fourteenth Amendment guarantees;

62. (d) Failing entirely to address the dispositive legal effect of the Penal Code § 849(b)(1) Detention Certificate, despite the Certificate being the most legally significant piece of evidence in the proceeding. A hearing officer who refuses to address a formal statutory instrument that destroys the jurisdictional foundation of the proceeding has not conducted a constitutionally adequate inquiry;

63. (e) Issuing a conclusory decision that characterized Plaintiff's detailed legal arguments as "unpersuasive" without providing any reasoned analysis, thereby denying Plaintiff meaningful notice of why his evidence and authorities were rejected and precluding any possibility of meaningful appellate or judicial review.

B. Defendant Acted in the Clear Absence of All Jurisdiction

64. The DMV is a statutory creation. Its jurisdiction to act is entirely dependent upon the strict satisfaction of statutory prerequisites. Under California Vehicle Code §§ 13353 and 13353.2, the DMV's authority to impose an administrative suspension requires a finding that the driver was "lawfully arrested." This is not a discretionary element; it is a jurisdictional

predicate—a statutory condition precedent without which the DMV possesses no authority to act.

65. This jurisdictional predicate was formally and irrevocably destroyed before the hearing commenced. On November 5, 2024, the California Highway Patrol issued a Detention Certificate under Penal Code § 849(b)(1) expressly certifying that Plaintiff's taking into custody "was a detention only, not an arrest" and that there were "insufficient grounds" for a criminal complaint.

66. Penal Code § 849(c) mandates: "Thereafter, the arrest shall not be deemed an arrest, but a detention only." Penal Code § 849.5 contains identical mandatory language. These are not discretionary provisions. They are statutory commands that operate by force of law, not at the election of any party.

67. By operation of state law, the November 1, 2024 encounter ceased to be an arrest as a matter of law. The jurisdictional predicate for the APS proceeding—a lawful arrest—no longer existed. Defendant Candelaria nevertheless convened the hearing on January 24, 2025, and issued an order sustaining the suspension.

68. In doing so, she exercised adjudicative power over a subject matter—a license suspension predicated on an arrest—that statutorily did not exist. This is the quintessential definition of acting in the "clear absence of all jurisdiction." Stump v. Sparkman, 435 U.S. 349, 356–57 (1978).

69. This is not a case of a hearing officer making an erroneous evidentiary ruling or misapplying the law within her jurisdiction. This is a case of a hearing officer proceeding when the very statutory predicate for her authority had been formally nullified by the arresting agency itself. The distinction is fundamental: an act in excess of jurisdiction retains immunity; an act in the clear absence of all jurisdiction forfeits it. Id.

C. Defendant Performed Non-Judicial, Prosecutorial Functions

70. Absolute quasi-judicial immunity attaches only to functions that are "judicial in nature." Forrester v. White, 484 U.S. 219, 227–30 (1988). When an official performs investigative, executive, or prosecutorial functions, she is entitled at most to qualified immunity for those acts.

71. The DMV's dual-role framework required Defendant to "develop the facts"—a prosecutorial function—while also serving as adjudicator. This structural merging of roles is precisely what the Knudsen court identified as creating unconstitutional bias.

72. Defendant's conduct confirms that she acted as an advocate, not a neutral adjudicator:

- She adopted the arresting officer's narrative without independent scrutiny, despite objective contradictory evidence;

- She ignored the Detention Certificate entirely—conduct inconceivable for a neutral adjudicator confronted with a formal statutory instrument that destroyed the jurisdictional basis for the proceeding;

- She applied an irrebuttable presumption of regularity to insulate the State's case from challenge;

- She issued a decision that reads as a defense of the officers' actions ("would have been negligent in his job duties if he did not conduct an investigation") rather than a neutral evaluation of the evidence—the language of an advocate, not an adjudicator.

73. Because Defendant performed prosecutorial, non-judicial functions, she is not entitled to absolute quasi-judicial immunity for those acts.

D. Defendant Is Not Entitled to Qualified Immunity

74. Qualified immunity shields officials from liability only when "their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." Harlow v. Fitzgerald, 457 U.S. 800, 818 (1982). The inquiry is (1) whether the facts establish a constitutional violation and (2) whether the right was clearly established at the time. Saucier v. Katz, 533 U.S. 194, 201 (2001).

75. Prong One is satisfied. The factual allegations, taken as true, establish that Defendant deprived Plaintiff of a constitutionally protected property interest through a hearing that was procedurally inadequate under the Fourteenth Amendment in multiple, independently sufficient respects.

76. Prong Two is satisfied. The following principles were clearly established well before January 24, 2025:

77. (a) A driver's license is a protected property interest that cannot be taken without procedural due process. Bell v. Burson, 402 U.S. 535, 539 (1971)—decided fifty-four years before Defendant's conduct.

78. (b) Procedural due process requires a meaningful opportunity to be heard before a fair and impartial decisionmaker. Mathews v. Eldridge, 424 U.S. 319, 333 (1976)—decided forty-nine years before Defendant's conduct.

79. (c) A warrantless DUI arrest is unlawful absent observed volitional movement or an

applicable CVC § 40300.5 exception. Mercer v. DMV, 53 Cal.3d 753 (1991)—decided thirty-four years before Defendant's conduct.

80. (d) When an arrest is reclassified as a "detention only" under Penal Code § 849(b)(1), it "shall not be deemed an arrest" as a matter of California statutory law—a provision in continuous effect for decades.

81. (e) Combining the roles of advocate and adjudicator in a DMV hearing violates due process. California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022)—decided nearly three years before Defendant's conduct. Knudsen v. DMV, 101 Cal.App.5th 186 (2024)—decided approximately one year before Defendant's conduct.

82. No reasonable hearing officer, confronted with a formal Detention Certificate certifying "insufficient grounds," binding Supreme Court precedent directly on point, and objective dashcam evidence contradicting the officer's account, could have believed that dismissing all of it as "unpersuasive" without analysis and sustaining the suspension comported with the requirements of procedural due process.

83. Qualified immunity is a defense for officials who make reasonable mistakes in the face of genuine legal ambiguity. There was no ambiguity here. Every legal principle Defendant violated has been settled law for years or decades. Defendant is not entitled to qualified immunity.

ALLEGATIONS OVERCOMING ANTICIPATED AFFIRMATIVE DEFENSES

A. Absolute Quasi-Judicial Immunity Does Not Apply

1. The "Clear Absence of All Jurisdiction" Exception Applies

84. Plaintiff anticipates that Defendant will assert absolute quasi-judicial immunity. Plaintiff affirmatively alleges the following facts establishing that this defense is unavailable.

85. While hearing officers performing adjudicative functions may in some circumstances enjoy absolute immunity, see Butz v. Economou, 438 U.S. 478, 512–17 (1978), this immunity is subject to the critical limitation that it does not protect officials who act in the "clear absence of all jurisdiction." Stump v. Sparkman, 435 U.S. 349, 356–57 (1978).

86. The distinction between acting "in excess of jurisdiction" (immunity retained) and acting in the "clear absence of all jurisdiction" (immunity forfeited) is well-established. A probate judge who tries a criminal case acts in the clear absence of jurisdiction. A criminal court judge who imposes a sentence exceeding the statutory maximum acts in excess of jurisdiction. The former forfeits immunity; the latter does not.

87. Here, Defendant acted in the clear absence of all jurisdiction because:

- The APS framework under CVC §§ 13353 and 13353.2 confers jurisdiction only when the driver was "lawfully arrested";

- The CHP's formal Penal Code § 849(b)(1) Detention Certificate, issued before the hearing, certified that the taking into custody "was a detention only, not an arrest" due to "insufficient grounds";

- Penal Code §§ 849(c) and 849.5 mandate that "the arrest shall not be deemed an arrest";

- By operation of state law, the jurisdictional predicate for the APS proceeding ceased to exist as a matter of law before the hearing commenced.

88. When Defendant convened the hearing and sustained the suspension, she was exercising adjudicative power over a subject matter that statutorily did not exist. This is not a case of misapplying the law within her jurisdiction; it is a case of proceeding when the very foundation for jurisdiction had been formally nullified by the arresting agency's own institutional act.

2. The Act Was Not "Judicial in Nature" — Dual-Role Advocacy

89. Absolute immunity protects only actions that are "judicial in nature." Forrester v. White, 484 U.S. 219, 227–30 (1988). The DMV's dual-role framework required Defendant to "develop the facts"—a prosecutorial function—while also serving as adjudicator.

90. In Cleavinger v. Saxner, 474 U.S. 193, 202 (1985), the Supreme Court held that officials who lack the structural protections of judicial independence—including the absence of a separation between prosecutorial and adjudicative functions—are not entitled to absolute immunity.

91. The California Court of Appeal has held that the DMV's dual-role framework violates due process precisely because it merges advocacy and adjudication. California DUI Lawyers Ass'n, 77 Cal.App.5th at 530.

92. Defendant's conduct confirms she acted as an advocate: she ignored exculpatory evidence, applied an irrebuttable presumption in favor of the State, and issued a decision that reads as a defense of the officers' conduct rather than a neutral evaluation. These are prosecutorial acts, not judicial acts, and they are not protected by absolute immunity.

B. Qualified Immunity Is Unavailable

93. As alleged in paragraphs 74–83 above, Defendant violated clearly established constitutional rights of which a reasonable hearing officer would have known. Qualified immunity is therefore unavailable.

94. The defense of qualified immunity is not a license for officials to ignore inconvenient evidence and binding law with impunity. Defendant's conduct was objectively unreasonable in light of:

- The Detention Certificate, which by statute nullified the "lawful arrest" predicate;
- Mercer v. DMV, which held that a warrantless DUI arrest of a stationary vehicle parked off the roadway is unlawful;
- California DUI Lawyers Ass'n and Knudsen, which held that the dual-role framework violates due process;
- The dashcam transcript, which objectively contradicted the officer's sworn statement on material facts.

95. No reasonable hearing officer could have concluded that proceeding with the suspension under these circumstances comported with due process. Qualified immunity is therefore unavailable.

C. The Rooker-Feldman Doctrine Does Not Apply

96. The Rooker-Feldman doctrine is inapplicable because Plaintiff does not seek review of a state court judgment. The challenged action is an administrative decision by a DMV hearing

officer, not a judgment rendered by a state court of competent jurisdiction. Kougasian v. TMSL, Inc., 359 F.3d 1136, 1140–41 (9th Cir. 2004) ("administrative proceedings and decisions, even ones that are 'judicial in nature,' are not the same as state court proceedings"). The Ninth Circuit has consistently held that administrative agency determinations fall outside the scope of Rooker-Feldman. See Kougasian, 359 F.3d at 1141.

D. The Parratt/Hudson Doctrine Does Not Apply

97. The Parratt/Hudson doctrine is inapplicable because this action challenges a systemic, authorized deprivation effected through the DMV's established APS hearing procedures—not a random, unauthorized act by a rogue employee. Where the deprivation occurs through an established state procedure, the availability of post-deprivation remedies does not defeat a § 1983 claim. Zinermon v. Burch, 494 U.S. 113, 132 (1990). The constitutional deficiency here lies in the procedure itself—specifically, the structural merging of prosecutorial and adjudicative roles—not in any random deviation from established norms.

E. The Eleventh Amendment Does Not Bar This Action

98. The Eleventh Amendment does not bar this action. All claims for damages are asserted against Defendant exclusively in her individual capacity. Individual-capacity suits under § 1983 are not suits against the State for Eleventh Amendment purposes. Hafer v. Melo, 502 U.S. 21, 30–31 (1991). Defendant's potential liability is personal, not sovereign.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully prays that this Honorable Court enter judgment against Defendant Diana Candelaria, in her individual capacity, and grant the following relief:

A. Compensatory damages in an amount to be proven at trial, including but not limited to lost wages, lost earning capacity, consequential economic damages, and damages for emotional distress, humiliation, and mental anguish;

B. Punitive damages in an amount sufficient to punish Defendant's willful and reckless disregard for Plaintiff's constitutional rights and to deter similar conduct in the future, pursuant to Smith v. Wade, 461 U.S. 30 (1983), and as warranted by Defendant's deliberate indifference to Plaintiff's clearly established rights;

C. Reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988, to the extent applicable;

D. Pre-judgment and post-judgment interest as permitted by law;

E. Such other and further relief as this Court deems just, equitable, and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all claims and issues so triable pursuant to the Seventh Amendment to the United States Constitution and Rule 38 of the Federal Rules of Civil Procedure.

VERIFICATION

I, Brendan Ngehsi Newanforbi, am the Plaintiff in this action. I have read the foregoing Complaint and know the contents thereof. The factual allegations therein are true and correct to the best of my knowledge, information, and belief. I declare under penalty of perjury under the laws of the United States of America pursuant to 28 U.S.C. § 1746 that the foregoing is true and

correct.

Dated: March 16, 2026

Brendan Ngehsi Newanforbi, Plaintiff Pro Se
1455 Cat Tail Drive
Stockton, California 95204
Email: bnn.cdl@gmail.com

EXHIBIT INDEX

Exhibit A: Detention Certificate issued by Dublin CHP under Penal Code § 849(b)(1), dated November 5, 2024, CHP Case No. RJ68845

Exhibit B: CHP Dashcam Video Transcript with timestamped audio entries, November 1, 2024

Exhibit C: Notification of Findings and Decision issued by Defendant Candelaria, dated February 11, 2025, APS Case No. 34739340

Exhibit D: DS-367 Officer's Statement / Arrest Investigation Report filed by Officer Santiago Meza-Gonzalez

EXHIBIT A

BRENDAN NGEHSI NEWANFORBI
1455 CAT TAIL DR
STOCKTON, CA 95204

DEPARTMENT OF JUSTICE
STATE OF CALIFORNIA
(Rev. 07/2016)

DUBLIN CHP - 01991 - DETENTION CERTIFICATE

Penal Code section 849 provides:

(a) When an arrest is made without a warrant by a peace officer or private person, the person arrested, if not otherwise released, shall, without unnecessary delay, be taken before the nearest or most accessible magistrate in the county in which the offense is triable, and a complaint stating the charge against the arrested person shall be laid before the magistrate.

(b) A peace officer may release from custody, instead of taking the person before a magistrate, a person arrested without a warrant in the following circumstances:

(1) The officer is satisfied that there are insufficient grounds for making a criminal complaint against the person arrested.

(2) The person arrested was arrested for intoxication only, and no further proceedings are desirable.

(3) The person was arrested only for being under the influence of a controlled substance or drug and the person is delivered to a facility or hospital for treatment and no further proceedings are desirable.

(4) The person arrested was arrested for driving under the influence of alcohol or drugs and the person is delivered to a hospital for medical treatment that prohibits immediate delivery before a magistrate.

(c) The record of arrest of a person released pursuant to paragraphs (1) and (3) of subdivision (b) shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 849.5 provides:

In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, any record of arrest of the person shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 851.6 provides, in part:

(a) In any case in which a person is arrested and released pursuant to paragraph (1) or (3) of subdivision (b) of Section 849, the person shall be issued a certificate, signed by the releasing officer or his superior officer, describing the action as a detention.

(b) In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, the person shall be issued a certificate by the law enforcement agency which arrested him describing the action as a detention.

As required by Penal Code section 851.6, I hereby certify that the taking into custody of

NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN (Subject's Name (Subject's True Name)) on 11/01/2024 (Date) by the

DUBLIN CHP - 01991 (Name of Agency Taking Custody) RJ68845 (Agency Report Number)

was a detention only, not an arrest. NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN NGEHSI) (Subject's Name (Subject's True Name))

was released on 11/05/2024 (Date) by the DUBLIN CHP - 01991 (Name of Releasing Agency)

Signature: [signature] Printed Name: DEL CARLO, L.

Badge or Identification Number: 022511 Title: OFFICER

Detention Certificate was prepared by chp22511 (CALIFORNIA HIGHWAY PATROL, DUBLIN) on 05/12/2025 11:53 AM.

EXHIBIT B

EXHIBIT B

TRANSCRIPT OF CALIFORNIA HIGHWAY PATROL DASHCAM VIDEO AND AUDIO RECORDING

Incident Date: November 1, 2024
Location: Interstate 580 East, Livermore, Alameda County, California
CHP Case Number: RJ68845
Recording Duration: 00:54:36 – 01:57:10

CERTIFICATE OF ACCURACY

I, Brendan Ngehsi Newanforbi, hereby certify that the following transcript is a true and accurate transcription of the audio and video recording captured by the California Highway Patrol dashcam during the incident of November 1, 2024. Timestamps are synchronized with the original recording. Speaker identifications are based on visual and audio identification from the recording.

LEGEND:

Meza-Gonzalez: CHP Officer Santiago Meza-Gonzalez (Badge #023295)

Melano: CHP Officer Jose Melano (Badge #023054)

Plaintiff: Brendan Ngehsi Newanforbi

Dispatch: CHP Radio Dispatch

[Bracketed text]: *Actions, observations, or non-verbal events visible on recording*

VERBATIM TRANSCRIPT

I. INITIAL APPROACH AND VEHICLE CONTACT (00:54:36 – 00:56:45)

00:54:36 *[CHP vehicle heading eastbound on I-580.]*

00:55:25 *[CHP vehicle begins to pull over onto shoulder and behind the Tesla.]*

00:55:37 *[CHP vehicle comes to a full and complete stop; audio recording activates.]*

00:55:53 — Melano: "It's a rental. Huh."

00:55:57 *[Both officers exit CHP vehicle and walk toward Tesla on dirt shoulder, passenger side. Both have flashlights in hand.]*

00:56:00 *[Meza-Gonzalez lifts left arm with flashlight (light on) and points it at Plaintiff's vehicle, passenger side.]*

00:56:05 *[Both officers are now peering into Plaintiff's windows with flashlights, appearing to search the interior.]*

00:56:07 *[Officers continue peering into vehicle. Meza-Gonzalez begins knocking on front passenger side window.]*

00:56:07 — Melano: "It wasn't here earlier when we passed by."

00:56:09 — Melano: "I think it's booze."

00:56:30 — Melano: "Oh look at this."

00:56:30 *[Meza-Gonzalez continues knocking on window to wake Plaintiff.]*

00:56:40 — Melano: "Open the window."

00:56:43 *[Passenger side door is opened by Officer Jose Melano.]*

00:56:46 — Melano: "Hello."

00:56:46 — Plaintiff: "Uh-huh."

00:56:47 — Melano: "Are you okay?"

00:56:48 — Plaintiff: "Yeah, we good."

00:56:49 — Melano: "Why are you here? Just tired?"

00:56:50 *[Plaintiff repeatedly says "no."]*

00:56:52 — Melano: "What do you mean?"

00:56:54 *[Plaintiff repeatedly says "no."]*

00:56:58 — Plaintiff: "We're good. We good, we good." "Yeah we're straight."

00:57:05 — Melano: "OK. Where were you coming from?"

00:57:11 — Plaintiff: "We're coming from uh, uh, a party."

II. CUP INSPECTION AND DETERMINATION (00:57:30 – 00:59:12)

00:57:30 — Plaintiff: "I've been here at this place right here for, since a little after midnight."

00:57:35 — Melano: "OK. How long have you been here for?"

00:57:39 — Meza-Gonzalez: "No, I mean like how long have you been parked here on the side of the road?"

00:57:43 — Plaintiff: "Oh parked at this parking lot right here?"

00:57:46 — Meza-Gonzalez: "This is not a parking lot."

00:57:49 — Plaintiff: "Two... two o'clock."

00:57:49 *[Plaintiff still groggy from sleep.]*

00:57:51 — Meza-Gonzalez: "No, right there it says twelve fifty-seven a.m. on the dash. You see it says 12:57 a.m.?"

00:57:58 — Plaintiff: "Yeah I should be home by like 1:30."

00:58:01 — Meza-Gonzalez: "I understand. But um how long have you been here on the side of the road for?"

00:58:06 — Plaintiff: "Oh uh like 5-7 minutes."

00:58:07 — Meza-Gonzalez: "5-7 minutes? Okay. And you were at this party alone?"

00:58:13 — Meza-Gonzalez: "Like, I know but, you were driving? That was what I meant to ask you."

00:58:30 — Meza-Gonzalez: "How much have you had to drink at the party? You said it was like 2 hours ago?"

00:58:34 — Meza-Gonzalez: "Okay. What's in that cup right there?"

00:58:36 — Plaintiff: "Zero."

00:58:37 — Meza-Gonzalez: "You haven't had anything?"

00:58:38 — Plaintiff: "No, no."

00:58:46 — Plaintiff: "Don't drink it. Yeah don't drink it."

00:58:49 — Melano: "What is it? Let me see."

00:58:51 — Melano: "Is it water? No this is piss. This is pee."

00:58:57 — Plaintiff: "I don't know what that is."

00:58:59 — Melano: "I'm telling you it's piss. It smells like piss."

00:58:59 *[Melano has liquid cup in hand and motions it. Meza-Gonzalez leans back.]*

00:59:02 — Meza-Gonzalez: "No I'm not gonna smell that."

00:59:04 — Melano: "Yeah, I'm telling you it's piss."

00:59:05 — Plaintiff: "Oh, OK."

00:59:07 — Melano: "OK. Leave it there. Put it back."

00:59:12 — Meza-Gonzalez: "Could I just have you uh just step out of your vehicle real quick?"

III. PLAINTIFF EXITS VEHICLE AND IDENTIFICATION (00:59:25 – 01:01:16)

00:59:20 *[Plaintiff crosses over from passenger side to driver side at Meza-Gonzalez's command.]*

00:59:25 — Meza-Gonzalez: "And then uh just hop out of your vehicle."

00:59:27 — Melano: "Where's your ID at?"

00:59:31 — Meza-Gonzalez: "Do you have any ID on you at all? Is it on your pants?"

00:59:34 — Melano: "Yeah he said it's in his pocket bro."

00:59:36 — Meza-Gonzalez: "Pocket? OK."

00:59:38 — Meza-Gonzalez: "What's your first name?"

00:59:39 — Plaintiff: "Brendan, sir."

00:59:40 — Meza-Gonzalez: "Brendan? OK. Alright Brendan, just meet me right next to my car, OK?"

00:59:38 *[Plaintiff calmly complying with commands, walking toward CHP vehicle in a manner consistent with no signs of impairment.]*

00:59:46 — Meza-Gonzalez: "What's your last name?"

00:59:46 *[Melano can be seen opening rear or backseat passenger door and conducting a search while Plaintiff is being escorted by Meza-Gonzalez.]*

00:59:47 — Plaintiff: "Newanforbi."

00:59:50 — Meza-Gonzalez: "What's your last name?"

00:59:46 *[Melano can be seen opening rear or backseat passenger door and conducting a search while Plaintiff is being escorted by Meza-Gonzalez.]*

00:59:51 — Plaintiff: "Newanforbi."

00:59:53 — Meza-Gonzalez: "You could — you could stand here."

00:59:53 *[Meza-Gonzalez motions Plaintiff to stand next to CHP vehicle.]*

00:59:55 — Meza-Gonzalez: "So you said your last name was what?"

00:59:57 — Plaintiff: "NEW-WAN-FOR-BI."

01:00:00 — Meza-Gonzalez: "Newanforbi?"

01:00:01 — Plaintiff: "Yes."

01:00:02 — Meza-Gonzalez: "OK."

01:00:04 — Meza-Gonzalez: "Can I see your ID please?"

01:00:06 — Melano: "Meza?"

01:00:06 *[Melano calls Meza-Gonzalez's attention, then walks over with an empty can in hand.]*

01:00:07 — Meza-Gonzalez: "Did you drink that?"

01:00:08 — Plaintiff: "No."

01:00:09 — Melano: "Mike's Hard Lemonade. 10% alcohol."

01:00:09 — Meza-Gonzalez: "No? You didn't drink that?"

01:00:09 *[Plaintiff nods 'no.']*

01:00:11 — Meza-Gonzalez: "You haven't drank anything since you've been parked?"

01:00:14 — Plaintiff: "No."

01:00:15 — Meza-Gonzalez: "OK. Can I see your ID? Your ID real quick?"

01:00:17 *[Plaintiff calmly presents ID to Meza-Gonzalez.]*

01:00:19 — Meza-Gonzalez: "Alright sir, thank you."

01:00:21 — Meza-Gonzalez: "Brendan Newanforbi."

01:00:21 *[Officer reading the ID.]*

01:00:22 *[Plaintiff quietly nods head yes.]*

01:00:24 — Meza-Gonzalez: "Uh, do you still live on Cat Tail?"

01:00:26 *[Plaintiff nods head and says yes.]*

01:00:28 — Meza-Gonzalez: "You said you've been here for seven minutes. Uh, you drove home from a party. When was the party at?"

01:00:34 — Plaintiff: "It wasn't all the way in Oakland."

01:00:37 — Meza-Gonzalez: "Oakland? Oh and you're going back home to Stockton?"

01:00:39 — Plaintiff: "Yes."

01:00:40 — Meza-Gonzalez: "You know where you're at right now?"

01:00:41 — Plaintiff: "Right now, Livermore."

01:00:43 — Meza-Gonzalez: "You are in Livermore."

01:00:44 *[Plaintiff proceeds to read a highway sign about 50 yards away.]*

01:00:44 — Plaintiff: "Isabella Avenue, Portola Avenue, ___ Avenue."

01:00:46 — Meza-Gonzalez: "Correct."

01:00:50 — Meza-Gonzalez: "Correct. And you haven't had any alcohol since you've been parked here?"

01:00:53 — Plaintiff: "No sir."

01:00:54 — Meza-Gonzalez: "Did you have any alcohol at the party?"

01:00:56 — Plaintiff: "No."

01:00:57 — Meza-Gonzalez: "No? OK."

01:00:57 *[Meza-Gonzalez reaches into shirt pocket, pulls out two notebooks and a pen. Flips open a page and continues questioning.]*

01:01:16 — Meza-Gonzalez: "So why was the reason that you stopped on the side of the road? You just felt tired?"

IV. PRE-FST QUESTIONING (01:01:21 – 01:05:07)

01:01:21 — Plaintiff: "You know I'm a truck driver. So when I feel tired, when I feel fatigued, whenever I am unable to continue to drive that truck, I'm gonna pull over to the side of the road, try to get a nap. It's not often that I'm going to go into the exit. It's not often that I'm gonna do that because it's an immediate thing. How quickly can I move over to the side of the road, catch some shut-eye, wake up and continue on to finish the route? I adopt that same sort of mentality..."

01:01:55 — Meza-Gonzalez: "...when you're driving your personal vehicle?"

01:01:56 — Plaintiff: "...when I drive my personal vehicle."

01:01:58 — Meza-Gonzalez: "OK, is this your car though?"

01:01:59 — Plaintiff: "This is a rental."

01:02:02 — Meza-Gonzalez: "Do you know anything mechanically wrong with it or is it perfectly fine?"

01:02:06 — Plaintiff: "Uh, I don't know what could have been wrong with it. As far as I know, since I've only had it for what, less than a week."

01:02:15 — Meza-Gonzalez: "OK. Are you sick or injured?"

01:02:17 — Plaintiff: "Sorry?"

01:02:18 — Meza-Gonzalez: "Are you sick or injured?"

01:02:19 *[Plaintiff leans head toward the right to hear Meza-Gonzalez's question better.]*

01:02:19 — Meza-Gonzalez: "Are you sick or injured?"

01:02:21 — Plaintiff: "Am I sick or injured physically? No."

01:02:26 — Meza-Gonzalez: "OK. Are you diabetic or epileptic?"

01:02:28 — Plaintiff: "I have — I have been diagnosed with pre-diabetes."

01:02:31 — Meza-Gonzalez: "Pre-diabetes? OK. And do you take insulin?"

01:02:34 — Plaintiff: "No sir, no sir. I don't take any insulin to treat the pre-diabetes."

01:02:41 — Meza-Gonzalez: "OK. So you don't have any physical impairments?"

01:02:48 — Plaintiff: "Besides the pre-diabetes and the uh..."

01:02:51 — Meza-Gonzalez: "Can I have you spit out whatever is in your mouth?"

01:02:51 *[Meza-Gonzalez motions with circular motion, points at his mouth.]*

01:02:53 — Plaintiff: "Oh I'm sorry, that's — that's just like spit."

01:02:53 *[Plaintiff leaning downward and away from Meza-Gonzalez.]*

01:02:54 — Meza-Gonzalez: "Is it seeds or what is it?"

01:03:01 — Plaintiff: "That's a hotdog, from the hotdog stand."

01:03:05 — Meza-Gonzalez: "Oh OK. I just wasn't sure what you were chewing on. That's why I wanted you to spit it out."

01:03:09 — Plaintiff: "Sorry."

01:03:10 — Meza-Gonzalez: "It's fine. Alright, um when was the last time you slept? 'Cause I know that we've got you sleeping right here. How long would you say you slept for, maybe like, you got like 5 minutes of shut-eye right now?"

01:03:19 — Plaintiff: "Yeah like only been 7, yeah."

01:03:28 — Meza-Gonzalez: "OK. And what did you last eat? You said a hotdog?"

01:03:31 — Plaintiff: "Yeah."

01:03:32 — Meza-Gonzalez: "What time did you have the hotdog?"

01:03:34 — Plaintiff: "What time is it now sir?"

01:03:35 — Meza-Gonzalez: "Uh right now it's 1 AM."

01:03:42 — Plaintiff: "Maybe like 11:30."

01:03:47 — Meza-Gonzalez: "And you were driving correct? The car, the Tesla?"

01:03:50 — Plaintiff: "I was in the driver's seat, yes sir."

01:03:53 — Meza-Gonzalez: "OK, but you were driving? 'Cause you said you came from a party in Oakland?"

01:03:57 — Plaintiff: "Oakland, yes."

01:03:59 — Meza-Gonzalez: "OK. Um, you started driving from Oakland, you're going to Stockton, and you said you know that you're in Livermore right?"

01:03:59 *[Meza-Gonzalez making hand motions.]*

01:04:07 — Plaintiff: "Yeah, I'm aware of that."

01:04:12 — Meza-Gonzalez: "What you said you haven't been drinking anything at all? No alcohol? OK."

01:04:14 — Plaintiff: "No sir."

01:04:18 — Meza-Gonzalez: "Have you bumped your head recently? Like at all?"

01:04:21 — Plaintiff: "I'm not sure."

01:04:23 — Meza-Gonzalez: "OK."

01:04:29 — Meza-Gonzalez: "Are you under the care of a doctor or dentist?"

01:04:33 — Plaintiff: "If you ask me who my primary care doctor was, I wouldn't be able to tell you."

01:04:37 — Meza-Gonzalez: "That's fine. I was just — I just want to know if you're under the care of a doctor or dentist for something, like something, like an injury or something."

01:04:44 — Plaintiff: "Like I said, I have recently seen a doctor for high blood pressure."

01:04:51 — Meza-Gonzalez: "OK. Have you taken any medication or drugs?"

01:04:56 — Plaintiff: "No drugs or medicine."

01:05:00 — Meza-Gonzalez: "No? OK."

01:05:00 *[Meza-Gonzalez proceeds to command Plaintiff to come to his car.]*

V. FIELD SOBRIETY TESTS (01:05:07 – 01:10:30)

01:05:07 — Meza-Gonzalez: "Alright, so what I'm gonna have you do is come off of my car, OK? I'm gonna have you put your feet together. Put your feet together for me. Put your hands down by your side, and then just remain like this until I tell you to do something else. Do you understand?"

01:05:21 — Plaintiff: "Yes sir."

01:05:22 — Meza-Gonzalez: "Alright. So what you're gonna do is you're gonna look at the tip of my finger with your eyes without moving your head. Do you understand?"

01:05:34 — Meza-Gonzalez: "Eyes test."

01:06:11 — Meza-Gonzalez: "Just continue looking at the tip of my finger, OK?"

01:06:54 — Meza-Gonzalez: "Alright, now come down to your nose, go around your face here. I'm not gonna touch you, OK?"

01:07:04 — Meza-Gonzalez: "OK."

01:07:04 *[Ends HGN test.]*

01:07:05 — Meza-Gonzalez: "You can relax."

01:07:06 — Meza-Gonzalez: "What do you drive?"

01:07:12 — Plaintiff: "I drive a uh Tesla Model Y."

01:07:14 — Melano: "You need a jacket or anything?"

01:07:15 — Meza-Gonzalez: "I'm good."

01:07:17 — Meza-Gonzalez: "Uh, a Tesla Model Y?"

01:07:18 — Plaintiff: "A Tesla Model Y."

01:07:21 — Meza-Gonzalez: "So you don't drive a, you said you drive a truck right?"

01:07:33 — Plaintiff: "I do drive a semi truck for a living. I do have a Class A license."

01:07:34 — Meza-Gonzalez: "Alright so what I'm gonna have you do, put your feet together, hands down by your side, OK? And then just remain like this until I tell you to do something different. Do you understand?"

01:07:41 — Plaintiff: "Understood."

01:07:42 — Meza-Gonzalez: "Alright, so when I tell you to do so, not now, what you're gonna do, when I tell you to, you're gonna tilt your head back alright, and then when I

tell you to do so, close your eyes. Close your eyes OK? Once you believe that 30 seconds have passed by, you're gonna open your eyes, you're gonna look at me, and you're gonna tell me to stop. Do you understand?"

01:07:58 — Plaintiff: "Understood."

01:07:59 — Meza-Gonzalez: "OK, so tilt your head back and close your eyes."

01:08:02 *[Meza-Gonzalez starts timer.]*

01:08:40 *[Plaintiff opens eyes and looks at Meza-Gonzalez, signaling for time to stop.]*

01:08:41 — Meza-Gonzalez: "Stop?"

01:08:44 *[Plaintiff nods head yes.]*

01:08:45 *[Meza-Gonzalez stops timer.]*

01:08:53 *[Meza-Gonzalez pulls notebook out, clicks pen, takes notes.]*

01:08:58 — Meza-Gonzalez: "Alright so what I'm gonna have you do now is same thing. Keep your feet together, hands down by your side, and then just remain like this until I tell you to do something different, OK? What you're gonna do is you're gonna choose either leg of your choice, OK? You're gonna lift it off the ground OK? 1 thousand 1, 1 thousand 2, 1 thousand 3, OK?"

01:09:14 — Plaintiff: "Really?"

01:09:20 — Meza-Gonzalez: "Yeah. You want to do it? It's fine if you don't. You don't have to."

01:09:23 — Plaintiff: "Well I mean, you're giving me all these tests. It seems as though I'm passing them and then the level of difficulty just keeps increasing and increasing and increasing. I just wanna know if I've passed your test."

01:09:43 — Melano: "We have other tests you could do."

01:09:44 — Meza-Gonzalez: "Yeah there's other ones we could do."

01:09:46 — Plaintiff: "So I haven't passed any of your tests yet?"

01:09:49 — Meza-Gonzalez: "I'm not saying that you haven't passed them yet. I'm just having you do them first."

01:09:52 — Melano: "Yeah there's not pass or fail."

01:09:54 — Plaintiff: "They obviously are because if there were pass or fail, if they were pass then I would have..."

01:09:58 — Meza-Gonzalez: "I need to do all of them. I go through all of them regardless if it's a pass or what you think is a pass or fail."

01:10:10 — Meza-Gonzalez: "Alright?"

01:10:12 — Plaintiff: "I don't think I — I don't know if I can balance on one knee."

01:10:14 — Meza-Gonzalez: "OK, well for the next one I'm gonna have you walk in a straight line, imaginary line. You want to do that one yes or no?"

01:10:23 — Plaintiff: "I mean I think we can do that. I mean..."

01:10:25 — Melano: "It's kind of sketch here bro."

01:10:26 — Meza-Gonzalez: "Is it 'cause it's on the side of the freeway?"

01:10:27 — Melano: "Yeah, it's on the side of the freeway and it's like uneven ground. I wouldn't do that one."

01:10:30 — Meza-Gonzalez: "Alright then."

VI. PAS TEST REQUEST AND ARREST (01:10:33 – 01:11:42)

01:10:33 — Meza-Gonzalez: "Alright, so then I'm gonna request you take a preliminary alcohol screening test for assisting me in determining whether you are under the influence of alcohol or not. You may refuse to take this test, however this is not an implied consent test and if you are arrested you will be required to give a sample of your blood or breath for the purpose of determining the alcoholic and drug content of your blood. Is that fine?"

01:10:51 — Plaintiff: "So you're saying that I am required or not required?"

01:10:54 — Meza-Gonzalez: "You're not required to do this. It'll assist me in determining whether you are under the influence of alcohol."

01:11:01 — Plaintiff: "And if I choose not to consent to it?"

01:11:03 — Meza-Gonzalez: "If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not."

01:11:11 *[Meza-Gonzalez and Melano calibrating breathalyzer.]*

01:11:13 — Meza-Gonzalez: "Yes or no?"

01:11:15 — Plaintiff: "I don't consent to that."

01:11:16 — Meza-Gonzalez: "OK. Brendan. Alright then. I'm gonna have you just turn around please. Place your hands behind your back."

01:11:31 — Meza-Gonzalez: "Place your hands behind your back."

01:11:33 — Meza-Gonzalez: "Separate your feet, point your toes out and don't move, okay?"

01:11:33 *[Meza-Gonzalez proceeds to place handcuffs on Plaintiff.]*

01:11:36 — Melano: "Go ahead."

01:11:36 *[Melano radios dispatch.]*

01:11:42 — Dispatch: "Uh so he is on parole for PC 289. He's also a 290 registrant. He's clear with San Joaquin and I'm gonna check Alameda."

VII. POST-ARREST PROCESSING (01:12:32 – 01:25:24)

01:12:32 — Melano: "He's on parole."

01:12:33 — Meza-Gonzalez: "You have the keys right?"

01:12:54 — Meza-Gonzalez: "I'm gonna just search you right now."

01:12:54 *[Meza-Gonzalez proceeds with pat down.]*

01:13:01 — Melano: "You need a property bag or no?"

01:13:02 — Meza-Gonzalez: "I got a property bag."

01:13:05 — Melano: "OK, look you want me to hold it for you?"

01:13:05 — Meza-Gonzalez: "I don't have it on me though."

01:13:14 *[Meza-Gonzalez reaches into Plaintiff's left pant pocket. Search of person continues.]*

01:13:31 — Meza-Gonzalez: "What's this ankle bracelet for?"

01:13:33 — Plaintiff: "Like you said, I am on parole."

01:13:35 — Melano: "Yeah."

01:13:38 — Meza-Gonzalez: "So you're on post-community supervision?"

01:13:42 — Plaintiff: "Uh I think there's a difference between PRCS—"

01:13:43 — Melano: "Yeah, there is."

01:13:46 — Plaintiff: "PRCS, parole, and uh what's the other one, probation."

01:14:30 — Melano: "Hey boss is there anything in the car that you want us to note on an inventory form that's really important of value that you want to take with you?"

01:14:33 — Plaintiff: "Not necessarily, I mean..."

01:14:34 — Melano: "Like do you want to take your phone with you or something?"

01:14:36 — Plaintiff: "Like my motor vehicle record, of course."

01:14:38 — Melano: "You want to take your phone with you?"

01:14:39 — Plaintiff: "Everybody would probably wanna take their phone."

01:14:42 — Melano: "Cool, so I'll grab your phone, anything else you want?"

01:14:49 — Melano: "Like phone, wallet, keys."

01:14:53 — Plaintiff: "You haven't seen anything else in there that's of value?"

01:14:56 — Melano: "No, I'll check. I haven't checked yet. I'm asking first."

01:14:59 — Plaintiff: "Phone, keys, wallet, paperwork."

01:15:06 — Melano: "Alright just put him in there."

01:15:06 *[Meza-Gonzalez escorts Plaintiff to passenger side of squad car and puts him in the back seat, cuffs still on. He attaches the handcuffs to the vehicle frame and then closes the door.]*

01:15:54 — Meza-Gonzalez: "Alright so uh you have the option of a chemical breath test or a chemical blood test, which one would you like to do?"

01:16:04 — Meza-Gonzalez: "You won't do it right now but when we get to the jail which one would you prefer to do, chemical breath or chemical blood?"

01:16:19 — Plaintiff: "I don't know. It seems like torture."

01:16:37 — Meza-Gonzalez: "Well the thing is you need to make that decision now because if let's say you decide you don't wanna do either chemical breath or chemical blood, I will have to read you the back of a DMV sheet. I'll read you all the rules right for implied consent. Basically, what it breaks down to is if you don't choose a chemical breath or a chemical blood, the DMV will have to suspend your license."

01:16:59 — Meza-Gonzalez: "'Cause right now you're not refusing, you're just saying that basically you don't want to choose and I'm letting you know what's gonna happen."

01:17:11 — Meza-Gonzalez: "You wanna choose a chemical breath or blood?"

01:17:13 — Plaintiff: "And then I can't drive whatsoever?"

01:17:16 — Meza-Gonzalez: "I'll read you the back of the DMV sheet so that way you know everything OK? OK just watch your fingers."

01:17:16 *[Meza-Gonzalez closes passenger door, enters driver door.]*

01:18:32 — Meza-Gonzalez: "You got a 130?"

01:18:34 — Melano: "Yeah I'm starting right now bro. I need to make sure there's no guns. He's on parole."

01:18:34 *[Melano continues searching vehicle.]*

01:19:18 *[Meza-Gonzalez reads chemical test admonishment.]*

01:20:49 — Meza-Gonzalez: "So that just broke it down detail by detail that basically if you refuse your driving privilege will be administratively suspended for one or three years by the DMV. Let's say you said you're sober right, you didn't drink anything whatsoever. Even if you still refuse to take a chemical breath or blood test, the DMV will administratively suspend your license for one year at least, and it could be up to three years."

01:21:17 — Plaintiff: "Well if that's what the DMV has to do then that's what the DMV has to do."

01:21:30 — Meza-Gonzalez: "So even though you know that you're gonna get suspended?"

01:21:33 — Plaintiff: "So you're saying the DMV will categorically suspend my license up to three years is what you're saying."

01:21:41 — Plaintiff: "Even as a truck commercial driver, that's what you're willing to do, force the DMV's hand?"

01:21:50 — Meza-Gonzalez: "I'm not forcing the DMV to do it, that's their rule."

01:21:52 — Plaintiff: "I get that."

01:21:54 — Meza-Gonzalez: "And all you have to do is take a chemical breath or chemical blood without refusing."

01:22:04 — Plaintiff: "With all due respect, by the power that's been vested upon you in the State of California..."

01:22:15 — Meza-Gonzalez: "So you're refusing to take a test?"

01:22:21 — Meza-Gonzalez: "OK."

01:23:11 — Melano: "Yeah we just have to write what time we last passed him here because he wasn't here earlier."

01:23:16 — Meza-Gonzalez: "But he said he was here for seven minutes."

01:23:17 — Melano: "Yeah plus we can't tell if—"

01:23:20 — Melano: "So I didn't circle in yet because I was doing my search first because he's on parole."

01:23:26 — Melano: "Let me sanitize my gloves, there was piss everywhere. Gross."

01:23:33 — Melano: "Yeah you want to start your warrant?"

01:23:34 — Meza-Gonzalez: "I could start the CLETS."

01:23:36 — Melano: "Start your CLETS yeah."

01:24:17 — Melano: "Any additional charges because he's on parole?"

01:24:17 — Meza-Gonzalez: "What's the parole for?"

01:24:21 — Melano: "'Cause he's supposed to be in prison, I don't think parole is. Actually there is a parole violation, that's says on. I don't know though."

01:25:24 — Melano: "Oh yeah it's gonna be a good partnership."

VIII. IMPLIED CONSENT ADVISEMENT (01:36:47 – 01:38:35)

01:36:47 — Melano: "Hey boss, um I'm gonna just read something for you OK?"

01:36:54 — Melano: "This is the implied consent advisement."

01:36:58 — Plaintiff: "Implied consent advisement."

01:37:00 — Melano: "Yes sir."

01:37:00 — Plaintiff: "It's not a Miranda right?"

01:37:02 — Melano: "No, no, no. Miranda rights we only give when we still wanna ask you questions about the investigation."

01:37:07 — Plaintiff: "OK."

01:37:08 — Melano: "We already have everything we need right? So we're not gonna read Miranda because we don't need anything. Uh this is different. This is a valid implied consent advisement."

01:37:08 *[Melano reads implied consent advisement.]*

01:37:35 — Plaintiff: "A choice huh?"

01:37:32 — Melano: "So you're required by law like you have to do it."

01:37:34 — Plaintiff: "And what if I don't?"

01:37:36 — Melano: "If you don't do it we're gonna get it anyways. It says it's going to be with a warrant and you're gonna automatically lose your license."

01:37:37 — Melano: "Yeah. Blood or breath?"

01:37:39 — Plaintiff: "Now when you say required by law, what does that mean?"

01:37:42 — Plaintiff: "Yeah we've already been through this man."

01:37:45 — Melano: "Well I don't know, I just got back in the car. I haven't talked to you about it."

01:37:46 — Plaintiff: "Sorry, sorry. Yeah we've already been through this."

01:37:49 — Melano: "Oh OK."

01:37:50 — Plaintiff: "Officer Meza and uh we're good to go."

01:37:53 — Melano: "About what? So you already told him which one you want?"

01:37:57 — Plaintiff: "Yeah. Officer Meza didn't fill in. I'm sorry your name officer sir?"

01:38:01 — Melano: "Oh Melano sir."

01:38:02 — Plaintiff: "Officer Meza he didn't fill officer Melano in on it?"

01:38:06 — Melano: "So which one are we doing sir? I'm asking you here."

01:38:08 — Melano: "Neither?"

01:38:09 — Plaintiff: "Yep."

01:38:10 — Melano: "OK so we're getting a warrant and we're gonna... so we're doing a warrant and we're gonna do it."

01:38:18 — Plaintiff: "I mean that's what Officer Meza said."

01:38:30 — Melano: "OK perfect, so you do understand though?"

01:38:35 — Melano: "I mean it's a yes or no question sir. In that sense you're saying yes. So you could we're gonna get the warrant, then we're gonna do it and then OK perfect. I just want to make sure you understand. Thank you."

IX. TRANSPORT AND CASUAL CONVERSATION (01:44:21 – 01:57:10)

01:44:21 — Melano: "We'll put your battery in the Tesla. Is there an alternator? Well there's a battery but there's no alternator."

01:44:28 — Meza-Gonzalez: "No alternator."

01:44:29 — Melano: "No? What keeps the battery charged then?"

01:44:34 — Melano: "That's a good question huh?"

01:44:37 — Melano: "Boss do you think your car has an alternator or nah?"

01:44:40 — Plaintiff: "I don't think electric vehicles have alternators."

01:44:42 — Melano: "That's what I'm saying 'cause it doesn't get—"

01:44:43 — Meza-Gonzalez: "The alternator is used to start up the car."

01:44:47 — Melano: "No, the battery is used to start the car. The alternator—"

01:44:53 — Plaintiff: "Teslas have motors."

01:44:54 — Melano: "Oh. Dual motors. That part OK."

01:44:57 — Plaintiff: "They get charged up."

01:44:59 — Melano: "They don't need to be recharged?"

01:45:01 — Plaintiff: "Just like your phone gets charged."

01:45:02 — Melano: "Oh that's why you have a charger."

01:45:04 — Meza-Gonzalez: "Yeah."

01:45:05 — Melano: "And that's why the cars have an alternator 'cause the cars don't get charged."

01:45:27 — Plaintiff: "That's why you have a supercharger 'cause you take your car to it and charge it back up so you can drive it."

01:45:37 — Plaintiff: "Just like your phone."

01:45:37 — Melano: "Yeah thank you. I'm not a—"

01:45:45 — Melano: "Hey so I'm gonna put a paper in your bag that says when the vehicle is stored OK?"

01:52:05 *[Squad car leaves the scene with Plaintiff.]*

01:57:10 *[Squad car arrives at the Santa Rita Jail, Dublin CHP transfer.]*

— END OF TRANSCRIPT —

DECLARATION OF AUTHENTICITY

I, Brendan Ngehsi Newanforbi, declare under penalty of perjury under the laws of the United States and the State of California that the foregoing transcript is a true, accurate, and complete transcription of the California Highway Patrol dashcam video and audio recording from the incident of November 1, 2024, CHP Case No. RJ68845.

The original recording is in the possession of the California Highway Patrol and/or has been produced through discovery in this matter. This transcript was prepared from that recording and accurately reflects the statements and events captured therein.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: March 16, 2026

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per

EXHIBIT C

CALIFORNIA STATE TRANSPORTATION AGENCY GAVIN NEWSOM, Governor
DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
1455 Frazee Road, Suite 400
San Diego, CA 92108
laddsandiegooffice@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 619-220-5418

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

In the Matter of:	) ADMINISTRATIVE PER SE- .08% BAC Refusal
BRENDAN NGWANFORBI	) NOTIFICATION OF FINDINGS AND DECISION
1455 CAT TAIL DR	) CASE NUMBER: 34739340
STOCKTON, California 95204	) DRIVER LICENSE or FILE NUMBER: F7953179
	) ARREST DATE: November 1, 2024

The suspension against your driving privilege will be reimposed and is effective February 20, 2025.

This action will remain in effect through February 19, 2026.

BRENDAN NGWANFORBI (Respondent), the following findings and determinations are a result of your hearing on January 24, 2025.

FINDINGS OF FACT

I. Lawful Contact

Initial Contact:
Respondent was contacted by Officer Meza Badge #23295 with the Alameda County California Highway Patrol on 11/01/2024 at 12:55 AM under the following circumstances:
Officer Meza observed the Respondent parked on the right shoulder of I-580, just west of Isabel Avenue, when he conducted a welfare check. The Respondent was asleep when Officer Meza knocked on the right front passenger side window of the vehicle. Officer Meza made contact with the Respondent through the open right passenger side door. Respondent was then lawfully detained. A reasonable articulable suspicion to detain Respondent was based on Officer Meza's observations of objective symptoms of intoxication and Respondent's admission to driving.

II. Lawful Arrest

Respondent was lawfully arrested by Officer Meza at 1:12 AM.

Probable Cause supporting arrest:

Officer Meza had Probable Cause to arrest Respondent based on their observations of the following:

Objective signs of intoxication observed. Officer Meza observed Slurred Speech, Red and/or Watery Eyes, and Odor of Alcohol.

Other: Respondent relayed to Officer Meza he believed he was parked in a parking lot for seven minutes prior to the officer's arrival in which Officer Meza indicated he was parked on the side of the freeway.

Field Sobriety Tests (FSTs) conducted. Respondent performed unsatisfactorily on the following FSTs: HGN (Horizontal Gaze Nystagmus), and Modified Romberg.

Other: Officer Meza observed an orange 21 and over wristband on his right wrist.

Additional factors supporting the officer's belief Respondent had been driving a motor vehicle in violation of Sections 23152, 23153, or 23154: Officer Meza smelled the strong odor of an alcoholic beverage emitting from Respondent's breath and person while speaking to him in front of the patrol vehicle.

Statutory Authority supporting arrest:

Officer Meza had statutory authority to arrest Respondent.

Officer Meza had authority to arrest Respondent under Vehicle Code section 40300.5 based on: Respondent's vehicle was parked on the side of a highway when Officer Meza conducted a welfare check. Respondent was arrested to avoid injury to himself or property damage had he been allowed to drive away based on the objective symptoms of intoxication observed by Officer Meza.

Respondent contends: that he was not under the influence of an alcoholic beverage when he pulled over, he was tired and did not want to drive. Respondent argued the officer had indicated he had detected an odor of alcohol from the passenger side of the vehicle which was highly implausible. The officer also cited "red and watery eyes," and "slurred speech," however, these subjective observations were not corroborated by any objective evidence of impairment, such as erratic or unsafe behavior. Respondent contends on the improper escalation to a DUI investigation without probable cause. Furthermore, the incident occurred immediately after a holiday, during a period of heightened law enforcement targeting alcohol-related offenses.

Determination: Officer Meza certified under penalty of perjury on the DS 367, that under the laws of the State of California, the information on all pages of the Officer's Statement are true and correct. It is presumed official duty has been regularly performed. No evidence was presented to the contrary. Officer Meza observed objective symptoms of intoxication, which gave the officer the belief Respondent may have been driving under the influence of alcohol. The officer would have been negligent in his job duties if he did not conduct an investigation. As such, the argument is unpersuasive.

III. Admonition and Refusal

Admonition:

Respondent was admonished that their driving privilege would be suspended or revoked if they refused or failed to complete a required Chemical Test to determine the alcohol content of their blood by Officer Meza.

Chemical Test Refusal:

Respondent refused to or failed to complete the required Chemical Test.

Breath Test: Respondent refused to voluntarily submit to a chemical breath test.

Blood Test: Respondent refused to voluntarily submit to a chemical blood test.

DECISION

As a result of the preceding Findings and Determination, the suspension or revocation of your driving privilege is reimposed or sustained as specified above.

Dated: February 11, 2025

D. Candelaria
D. Candelaria - Driver Safety Hearing Officer

This action is independent of any other action taken by the court or this department.

Before a driver license can be issued or returned to you after you must complete the following:

- A $125.00 reissue fee must be paid to DMV §§14904 and 14906 VC.
- You must file proof of financial responsibility as provided in §16430 VC. (See attached or reverse.)
- You must maintain proof of financial responsibility for three years.

If you drive while your driving privilege is suspended or revoked, you may be arrested and, if convicted, jailed and/or fined.

Appeal Rights

You are entitled to a departmental review of this decision. A request for the departmental review does not stay the action. The review shall be limited to an examination of these findings and determination, and any evidence admitted at the hearing. It will not include a personal interview nor a review of evidence not presented at the hearing. To have this review, you must submit your written request with $120 for any action taken pursuant to §13353 VC or §13353.2 VC to the address shown above within 15 days of the effective date of the decision.

You may request a court review of this action by filing a petition for review of the order in the court of competent jurisdiction in your county of residence within 34 days from the date shown below if service of this notice was by mail, or within 30 days if service of this notice was made personally or electronically.

Case Number: 34739340 BRENDAN NGWANFORBI DL/ID/X: F7953179

CERTIFICATE OF SERVICE

☐ presented to the person named above a true copy of this document.
☐ emailed to the person named above a true copy of this document.
☑ deposited in the United States mail ☑ at the address shown above,
☐ at ,
a true copy of this document, in a sealed envelope, with postage paid, and addressed to the person as shown on this document.

I am over the age of eighteen years, an employee of the Department of Motor Vehicles at the business address as shown above in the county where the office is located, and I am not a party to the cause herein mentioned.
I certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
February 11, 2025	D. Candelaria	X D. Candelaria

Brendan Ngwanforbi
1455 Cat Tail Dr
Stockton, Ca 95204

⇩*Fold Here*⇩

⇩*Fold Here*⇩

A Public Service Agency

EXHIBIT D

DMV — A Public Service Agency

AGE 21 AND OLDER OFFICER'S STATEMENT

California Vehicle Code (CVC) §§13353, 13353.1, 13353.2 & 13389

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
RJ68845	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.): NEWAN FORBI, BRENDAN, N

DRIVER LICENSE NUMBER: F7953179 | COMMERCIAL? ☐ Yes ☒ No | STATE: CA

MAILING ADDRESS: ~~NEWAN FORBI~~ 1455 CAT TAIL DR STOCKTON CA 95204 (STATE / ZIP CODE)

DATE OF BIRTH: 9/16/96 | SEX: M | HAIR: BLK | EYES: BRN | HEIGHT: 508 | WEIGHT: 225

Arrest Type — For statistical purposes only. Check all that apply.
☒ Alcohol Use
☐ Cannabis Use
☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

VEHICLE: **License Number or VIN:** 9EAX768
☐ **Commercial Vehicle:** Vehicle requires a commercial driver license (CVC §15210). ☐ **Hazardous Materials:** Transporting materials requiring placards/markings (CVC §27903).

NARRATIVE: Describe in detail the facts, observations, and circumstances that led to the stop or contact with the driver in ***Narrative*** section on **Page 2** of this form.
Contact: On date: 11/01/24 at 12:55 ☒ AM ☐ PM in City/County LIVERMORE | ALAMEDA CA, the above driver was contacted.

DRIVING: ☐ Driving observed by this officer **or** ☐ Driving observed by another observer (complete ***Observation/Arrest*** section on **Page 2**)
Admission of Driving: ☒ Driver admitted to driving the vehicle Collision: ☐ Driver involved in a collision

TIME: (If driving not observed by an officer.) What time did you stop driving **or** how long after driving/collision did you wait for law enforcement to arrive? Driver Response: 7 ☐ AM ☐ PM ☐ HR ☒ MIN

ARREST OR DETENTION STATEMENT: I had reasonable cause to believe the driver was driving a motor vehicle with alcohol and/or drugs present in the blood or while under the influence. The driver was lawfully arrested, or lawfully detained while on DUI probation, by this officer, or by the person shown in the ***Observation/Arrest*** section on Page 2, on date 11/01/24 at 1:12 ☒ AM ☐ PM for violation of CVC §§23152, 23153, or 23154.

OBJECTIVE SYMPTOMS OF INTOXICATION: ☒ Bloodshot/watery eyes ☒ Odor of alcoholic beverage ☐ Unsteady gait ☒ Slurred speech ☐ PAS results (*complete below*)
☒ Other: POOR FSTS Observed by: ☒ This officer ☐ Another observer:

PRELIMINARY ALCOHOL SCREENING TEST (PAS)

DUI Probation: Required. Non-DUI Probation: Optional. Always complete section if PAS results available.

Driver submitted to and completed a PAS test with the results of:

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM

OFFICER CERTIFICATION: I certify under penalty of perjury under the laws of the State of California that: **(1)** I obtained the above PAS test results in the regular course of my duties, **(2)** I used PAS Model (*Name/Number*) REFUSED, Serial# _____, Manufactured by _____, **(3)** I administered this PAS test properly in accordance with the manufacturer's guidelines and instructions, **(4)** I have received training on the proper operation of this device and administration of the PAS test and am competent and qualified to operate the device, and **(5)** the device was functioning properly at the time of the test.

Date / / Signature X Badge/ID Number Agcy./Div

Breath Test Results: CHEMICAL TEST — Attach copy of the results, if available.

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 3** (WHEN APPLICABLE) _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM

BREATH TEST MACHINE OPERATOR CERTIFICATION: I certify under penalty of perjury under the laws of the State of California, that the above breath test sample results were obtained in the regular course of my duties. I further certify that I am qualified to operate this equipment and that the test was administered pursuant to the requirements of Title 17 of the *California Code of Regulations*.

Date / / Signature X Badge/ID Number Agcy./Div

BLOOD TEST RESULTS: Blood test on date: 11/01/24 at 7:38 ☒ AM ☐ PM

URINE TEST RESULTS: First void on date: / / at ☐ AM ☐ PM Test on date: / / at ☐ AM ☐ PM

I certify under penalty of perjury, under the laws of the State of California, that the information contained on all pages of this Officer's Statement is true and correct.

EXECUTED ON: Date 11/1/24 in City LIVERMORE County ALAMEDA

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER
MEZA	23295	(925) 828-0466
AGENCY	**AREA**	**COURT CODE (IF UNKNOWN, COURT NAME)**
CHP	391	01435

I ☒ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date 11/1/24 Signature of Arresting Officer X

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by another officer have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date / / Serving Officer's *Printed* Name Badge/ID Number Signature Of Serving Officer X

continued on reverse

CHEMICAL TEST ADMONITION
(CVC §§23154, 23612)

I admonished the driver on date: 11 / 2 / 24 at 0120 ☒ AM ☐ PM

1. You are required by state law to submit to and complete a chemical test to determine the alcohol and/or drug content of your blood.
2. Because I believe you are under the influence of alcohol or a combination of alcohol and drugs, you have a choice of taking a breath or blood test. If you are on DUI Probation you are required to submit to a Preliminary Alcohol Screening Test.
3. Availability of Tests. (*Read only when applicable.*)
   - ☐ **When Applicable:** Since the breath and blood tests are unavailable; you are incapable of completing a breath or blood test; or you are afflicted with hemophilia or are using an anticoagulant medication, you are deemed to have given your consent to chemical testing of your urine.
   - ☐ **When Applicable:** Since you need medical treatment, your choice is limited to the (*check all available*) ☐ blood, ☐ breath, and/or ☐ urine test(s), the only test(s) available at _____.
4. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years** by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21; or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
5. Refusal or failure to complete a chemical test may be used against you in court.
6. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
7. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.
8. If you cannot, or state you cannot, complete the test you choose, you must submit to and complete a remaining test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Preliminary Alcohol Screening Test?** (*DUI Probation*) _____

☐ **Will you take a Breath Test?** _____

☐ **Will you take a Blood Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ PAS test unavailable ☐ Breath test unavailable ☐ Blood test unavailable

Explain: _____

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*): _____

Admonition Read by a Different Officer: If the above Chemical Test Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY /DIVISION	TELEPHONE NUMBER
			( )

DRUG ADMONITION

1. Because I believe you are under the influence of drugs or a combination of drugs and alcohol, you are required by state law to submit to a blood, breath, or urine test. A urine test is available only if you are afflicted with hemophilia or are using an anticoagulant medication.
   - ☐ **When Applicable:** Because you have already submitted to or refused or failed to complete a breath test **or** a breath test is unavailable, your choice is limited to a blood test or a urine test, when applicable.
2. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years**, by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21, or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
3. Refusal or failure to complete a chemical test may be used against you in court.
4. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
5. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Blood Test?** _____

☐ **Will you take a Urine Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ Blood test unavailable ☐ Urine test unavailable

Explain: _____

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*): _____

Admonition Read by a Different Officer: If the above Drug Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY/DIVISION	TELEPHONE NUMBER
			( )

continued on next page

A Public Service Agency

AGE 21 AND OLDER OFFICER'S STATEMENT

CVC §§13353, 13353.1, 13353.2 & 13389

DS 367
Page 2

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
KJ68943	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWANFORBI, BRENDAN, N	F7953179	☐ Yes ☒ No	CA

MAILING ADDRESS	STATE	ZIP CODE
~~NEWANFORBI~~ 1455 CAT TAIL DR	STOCKTON CA	95204

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
9/16/96	M	BLK	BRN	508	225

Arrest Type
For statistical purposes only. Check all that apply.
☒ Alcohol Use
☐ Cannabis Use
☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

OBSERVATION/ARREST: If driving or collision was observed by someone other than the arresting officer, **or** if arrest was completed by another officer or person, input that person's information.

☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen	☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen
NAME (*PLEASE PRINT*)		NAME (*PLEASE PRINT*)	
ADDRESS		ADDRESS	
TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION	TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION

NARRATIVE

Describe in detail the facts, observations, and circumstances that led to the stop or contact. Print or write directly on this page.
A portion of another report may be **cut and pasted** below but should be dated and contain an original signature.
Attach arrest, collision, and/or supplemental report(s) if available.
If arrest was made per CVC **§40300.5** state the facts and circumstances that support the arrest.
DUI Probation Violations: Indicate below how you determined the driver was on DUI probation.

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

S.M 11/1/24

continued on reverse

FORWARD THIS DOCUMENT TO THE DMV WITHIN 5 BUSINESS DAYS OF THE ARREST.

Forward pages 1, 2 and 3 to your local Driver Safety Office.
The Driver Safety addresses and telephone numbers are listed below.
White—***DMV*** Yellow—***Law Enforcement*** Pink—***Driver***

DEPARTMENT OF MOTOR VEHICLES — DRIVER SAFETY OFFICES

LOCATION	TELEPHONE	FAX	ADDRESS
Bakersfield	(661) 833-2103	(661) 833-2102	5800 District Blvd., Ste. 100-B, 93313
City of Commerce	(323) 724-4000	(323) 724-9262	5801 E. Slauson Ave., 2nd Flr., Ste. 250, 90040
City of Orange	(714) 703-2511	(714) 703-2526	790 The City Dr., Ste. 420, 92868
Covina	(626) 974-7137	(626) 974-7118	1365 N. Grand Ave., Ste. 101, 91724
El Segundo	(310) 615-3500	(310) 615-3581/3582	390 N. Pacific Coast Hwy., Ste. 2075, 90245
Fresno	(559) 445-6399	(559) 445-6379	2510 S. East Avenue, Ste. 310, 93706
Oakland	(510) 563-8900	(510) 563-8950/8951	7677 Oakport St., Ste. 220, 94621
Oxnard	(805) 988-3050	(805) 988-1420	2051 N. Solar Dr., Ste. 125, 93036
Redding	(530) 224-4755	(530) 224-4737	2650 Churn Crk. Rd., Ste. 200, 96002
Sacramento	(916) 227-2970	(916) 227-0174/2901	4700 Broadway, 2nd Flr., 95820
San Bernardino	(909) 383-7413	(909) 383-7439	1845 Business Center Dr., Ste. 212, 92408
San Diego	(619) 220-5300	(619) 220-5418	1455 Frazee Rd., Ste. 400, 92108
San Francisco	(415) 557-1170	(415) 557-7375	1377 Fell Street, 2nd Flr., 94117
San Jose	(408) 229-7100	(408) 229-7128/7129	90 Great Oaks Blvd., Ste. 104, 95119
Santa Rosa	(707) 576-2710	(707) 543-7154	2570 Corby Ave., 95407
Stockton	(209) 948-7715	(209) 463-4858	710 N. American St., 95202
Van Nuys	(818) 376-4217	(818) 376-4215/4216	6150 Van Nuys Blvd., Ste. 205, 91401

continued on next page

A Public Service Agency

AGE 21 AND OLDER ADMINISTRATIVE PER SE SUSPENSION/REVOCATION ORDER AND TEMPORARY DRIVER LICENSE

DS 367

Driver **must** be given a copy of this order. **DMV telephone number (916) 657-0214.**

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
KS 6295	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
VIEWIA TORBI, BRENDAN, N	F7415179	☐ Yes ☒ No	CA

MAILING ADDRESS	STATE	ZIP CODE
[illegible]		

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
11/6/96	M	BLK	BRN	[illegible]	225

Arrest Type
For statistical purposes only. Check **all** that apply.
- ☒ Alcohol Use
- ☐ Cannabis Use
- ☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

You are hereby notified that your privilege to operate a motor vehicle will be suspended or revoked effective 30 days from the issue date of this order as shown below, and until you pay a $125 reissue fee and file proof of financial responsibility as shown on the reverse.

For additional information call (916) 657-0214.

TEMPORARY DRIVER LICENSE

This document must be carried with you and shall serve as your temporary California driver license. It is subject to the same class(es) and all restrictions as your permanent driver license. **This temporary driver license does not provide you with any driving privileges if you do not have a California driver license or your license is expired, suspended, revoked, canceled, or denied.** It expires at midnight 30 days from the issue date of this order shown below.

This action is taken under authority of *California Vehicle Code* (CVC) §§13353, 13353.1, 13353.2 and 13389 because you were arrested or detained for driving under the influence of alcohol and/or drugs and:

BAC 0.01% PAS, Breath, Blood or Urine Test DUI Probation	You completed a PAS, breath, blood, or urine test and the officer believes the results will show 0.01% BAC or more. If the laboratory results show your BAC was less than 0.01%, this suspension will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.08% Breath, Blood, or Urine Test	You completed a breath test with 0.08% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.08% BAC or more. If the laboratory results show that your BAC is less than 0.08%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.04 % Breath, Blood or Urine Test while driving a Commercial Vehicle	You completed a breath test with 0.04% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.04% BAC or more. If the laboratory results show that your BAC is less than 0.04%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
Chemical Test Refusal	You refused to submit to, or failed to complete, a chemical test of the alcohol and/or drug content of your blood.

COMMERCIAL DISQUALIFICATION

A commercial disqualification action will be taken due to any of the following: if you refused a chemical test, if you had a 0.04% BAC or more while operating a commercial motor vehicle as defined in CVC §15210 or while transporting hazardous materials, or held a commercial driver license and were driving any vehicle when you had a 0.08% BAC or more.

HEARING INFORMATION

YOU HAVE **10 DAYS** FROM RECEIPT OF THIS NOTICE TO REQUEST A HEARING TO SHOW THAT THE SUSPENSION OR REVOCATION IS NOT JUSTIFIED. ***The suspension or revocation will not be stayed (delayed) unless you request a hearing within 10 DAYS from the issue date of this order and DMV cannot provide a hearing before the effective date of the suspension or revocation and make a determination.*** Hearings are conducted only to determine questions of fact as described on the reverse. Your need for a license cannot be considered at a hearing. **If you want a hearing or have questions regarding this matter, contact the DMV at (916) 657-0214.** A telephone hearing will be conducted unless you request an in-person hearing. Before the hearing you may see or obtain copies of the department's evidence. ***You must request copies of the department's evidence at least 10 DAYS prior to the date set for commencement of the hearing in order to receive them prior to the hearing date.*** If you want the information released to someone else, give them signed permission. ***You have the right to have a sign or language interpreter present at your hearing. If you require the service of an interpreter, immediately notify DMV of the need for such service. During the hearing*** you may present oral testimony and/or other evidence. Testimony is taken under oath or affirmation, and the hearing is recorded. You may be represented by legal counsel, or you may represent yourself. The arresting officer(s) may be subpoenaed in this matter, if it is determined that his or her testimony is needed. If you wish to question the arresting officer(s), you have the right to have subpoenas issued on your behalf. You may subpoena any other witness(es) you feel may help your case, and you have the right to cross-examine any opposing witness(es). Blank subpoenas may be obtained on the internet at the following address ***http://www.dmv.ca.gov/portal/dmv/detail/forms/formsds*** or provided to you by the hearing officer upon request prior to the hearing. You are responsible for service of your subpoena(s) and any witness fee required by law. ***After the hearing,*** the hearing officer shall make findings and render a decision.

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER
[illegible]	[illegible]	(909) 888 3446
AGENCY	**AREA**	**COURT CODE (IF UNKNOWN, COURT NAME)**
CHP	39	[illegible]

I ☐ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date / / Signature of **Arresting** Officer **X**

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by **another Officer** have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date	Serving Officer's *Printed* Name	Badge/ID Number	Signature Of Serving Officer
/ /			X

continued on reverse

HEARING ISSUES

Chemical test results of 0.01% or more BAC while on DUI probation; 0.04% or more BAC in a commercial motor vehicle; or 0.08% or more BAC.

- Did the peace officer have reasonable cause to believe you were driving a motor vehicle in violation of CVC §§23152, 23153, or 23154?
- Were you lawfully detained while on DUI probation or lawfully arrested?
- Were you driving a motor vehicle when you had: **0.01% BAC** or more by weight of alcohol while on DUI probation; **0.04% BAC** or more by weight of alcohol while driving a commercial vehicle; or **0.08% BAC** or more by weight of alcohol?

Refusal to submit to or failure to complete a chemical test.

- Did the peace officer have reasonable cause to believe you were driving a motor vehicle in violation of CVC §§23152, 23153, or 23154?
- Were you lawfully detained while on DUI probation, or lawfully arrested?
- Were you told that your driving privilege would be suspended, or revoked for one, two, or three years if you refused to submit to, or failed to complete a chemical test?
- Did you refuse or fail to complete a chemical test, or PAS test (DUI Probation), after being requested to do so by a peace officer?

APPEAL RIGHTS

Following the hearing decision, you may request a department review in writing within 15 days from the date on the bottom of the notice telling you the results of your hearing. The fee for the department review is $120. You may also appeal a DMV decision by filing a writ of mandamus at the superior court in your county of residence within 30 days from the date on the bottom of the notice telling you the results of your hearing.

PENALTIES

Chemical test results of 0.01% or more BAC while on DUI probation; 0.04% or more BAC in a commercial motor vehicle; or 0.08% or more BAC. (CVC §§13353.2 and 13353.3)

- **First Offense** of driving with a BAC of 0.08% or more **or** 0.04% or more BAC in a commercial motor vehicle will result in a **4-month suspension**, or a **1-year suspension** if 0.01% or more BAC while on DUI probation.
- **Second or Subsequent Offense**, within 10 years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.08% or more **or** a BAC of 0.04% or more in a commercial motor vehicle at any age, or you refused a test, will result in a 1-year suspension.

Refusal to submit to or failure to complete a chemical test or a preliminary alcohol screening. (CVC §§13353 and 13353.1)

- **First Offense** will result in a **1-year suspension, or a 2-year revocation if on DUI probation**.
- **Second Offense**, within 10 years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.08% or more **or** a BAC of 0.04% or more in a commercial vehicle at any age, or you refused a test, will result in a **2-year revocation, or a 3-year revocation while on DUI probation**.
- **Three or More Offenses** within 10 years of any combination of the above violations, convictions or separate administrative determinations will result in a **3-year revocation**.

ADDITIONAL INFORMATION

An administrative review will automatically be conducted. You will be notified in writing only if the suspension or revocation is set aside. Before the suspension or revocation can be ended and a driver license issued or returned to you, a $125 reissue fee must be paid to DMV (CVC §14905), and you must file proof of financial responsibility by a California Insurance Proof Certificate (SR 22/1P), $35,000 cash deposit, or surety bond, or self insurer certificate (CVC §16430). You must maintain proof of financial responsibility for three years. If you drive while your driving privilege is suspended or revoked, you may be arrested and, if convicted, jailed and/or fined and your vehicle can be impounded or sold.

THE ADMINISTRATIVE PER SE SUSPENSION/REVOCATION ACTION IS INDEPENDENT OF ANY COURT SANCTIONS.

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